

more than one of the colonies or territories to whose stock any of the said Acts apply or could be made applicable.

(2) Any Order in Council under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

11 & 12 Geo. 5.
c. 58.
63 & 64 Vict.
c. 62.

(3) The expression "colonial stock" in section eleven of the Trusts (Scotland) Act, 1921, shall include any stock to which section two of the Colonial Stock Act, 1900, applies by virtue of an Order in Council made under this section.

Short title
and citation.

3. This Act may be cited as the Colonial Stock Act, 1948, and this Act and the Colonial Stock Acts, 1877 to 1934, may be cited together as the Colonial Stock Acts, 1877 to 1948.

CHAPTER 2.

An Act to make provision as to the effect of the expiry of the Debts Clearing Offices and Import Restrictions Act, 1934. [16th December 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Effect of
expiry of Act.
24 & 25 Geo. 5.
c. 31.

1.—(1) Notwithstanding anything in subsection (2) of section seven of the Debts Clearing Offices and Import Restrictions Act, 1934, on the expiry of that Act—

- (a) the Clearing Offices established thereunder shall cease to exist ;
- (b) so much of any debt to which any of the orders made under that Act applied as has not then already been discharged shall, instead of being owed to the Clearing Office, be owed to the person to whom it would have been owed if the said Act had not been passed ; and
- (c) subject to the provisions of paragraph (b) of this subsection, any rights or liabilities of any of the said Clearing Offices (including, in particular, rights in respect of sums advanced by them to exporters and others and not repaid) shall become rights and liabilities of the Crown,

and the Treasury shall do all such things as may be necessary or expedient for winding up the affairs of the said Clearing Offices.

(2) Where a judgment or order has been obtained by or on behalf of the Clearing Office before the expiry of the said Act for the payment of a debt to which any of the orders made under the said Act applied, the judgment or order shall become void on the expiry of the said Act but—

- (a) the debt shall not be deemed to have been discharged by reason only of the obtaining of the judgment or order, and any sum paid before the expiry of the said Act under the judgment or order shall be treated as having been paid in or towards the discharge of the debt ; and
- (b) as between the person against whom the judgment or order was obtained and any claimant to the debt, the judgment or order shall be conclusive as to all matters as to which it would have been conclusive as between the person against whom the judgment or order was obtained and the Clearing Office, without prejudice however, to the right of that person to avail himself against any such claimant of any defence which was not available to him in the proceedings in which the judgment or order was obtained.

(3) Where any part payment or acknowledgment of any debt to which any of the orders made under the said Act applied has been made to the Clearing Office before the expiry of the said Act, the part payment or acknowledgment shall, after the expiry of the said Act, be treated for the purposes of any Act limiting the time for the bringing of legal proceedings as if it had been made to the person to whom the debt would have been owed if the said Act had not been passed.

(4) Any expenses incurred by the Treasury in carrying this Act into execution shall be defrayed out of moneys provided by Parliament, and any sums recovered by the Crown under this Act in respect of the rights of the Clearing Offices shall be paid into the Exchequer.

2. This Act may be cited as the Debts Clearing Offices Act, Short title.
1948.